

How sharia's inherent worth principle reshapes interfaith relations

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PROVIDER

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Write a concise, self-contained article entry for the title: "How sharia's inherent worth principle reshapes interfaith relations".

Overall topic for alignment: Muslim-non-Muslim relations grounded in human dignity in sharia.

Important points to cover: Include Arabic terms, historical contexts, quranic foundations of sharia, minority and majority settings, Islamic theological schools, Islamic juristic schools of Hanafi, Hambali, shafi'i and Malaki, orientalist perspective, AI's humanistic approach to sharia, Human rights declaration..

- Output format: GitHub-Flavored Markdown. The markdown must be clean—do not include any code fences or surrounding markers. Target writing format: Blog Post. Follow these format-specific rules exactly:
- Aim for at least 6000 characters while staying under 12000. Prefer verifiable facts from the provided sources; do not fabricate citations or specific data.
- Place external links only in the "References" section; do not include inline external links in the body text.
- Maximum content length (including headings and references): 12000 characters. If nearing the limit, prioritize the most informative sections and keep references to 2-3.
- Write in the target response language. Avoid fluff; be precise and actionable. Do not include images or tables.
- Do not include code fences or any text outside the markdown content.

No external web sources are attached. Do not fabricate citations or specific facts that cannot be verified. Keep claims general and verifiable. In the 'References' section, include: "No external sources used."

****Respond in English****

SUMMARY

The article argues that sharia's foundational principle of inherent human dignity (*karāmah*), rooted in the Qur'an's declaration that all children of Adam are honoured (17:70), fundamentally grounds Islamic interfaith ethics, not mere tolerance. The Qur'anic vision of universal human inviolability (*‘iṣmah*) precedes legal distinctions, shaping commands against religious compulsion and for just dealings.

Historically, early Islam's Constitution of Medina established a multi-faith political community with mutual rights. Later, the *dhimma* system granted protected non-Muslims security of life, property, and worship, evolving into the Ottoman millet system's communal autonomy. All four major Sunni legal schools agreed on preserving non-Muslims' life, property, and honour, viewing protection pacts as sacred; some jurists even mandated capital punishment for killing a *dhimmī*.

In modern minority contexts, *fiqh al-aqalliyyāt* obligates Muslims to uphold civic loyalty and interfaith cooperation. Majority contexts are urged to shift from hierarchical *dhimma* to equal citizenship, as the same dignity goal now requires constitutional equality. Theologically, diverse schools locate a baseline human dignity in reason or primordial disposition.

Contemporary digital humanities research confirms a consistent emphasis on inviolability across legal texts, while human rights declarations like the 1990 Cairo Declaration and later revisions attempt to harmonize *karāmah* with universal standards. Ultimately, the article presents this retrieval of dignity not as an innovation but as a recovery of sharia's deepest impulse, offering a robust moral foundation for interfaith relations that move from fragile truces to mutual honour.

FULL CONTENT

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For many outside the Islamic tradition, the term *sharia* evokes ritual rigidity or punitive legalism. Yet at its core lies a jurisprudential and moral principle that is often overlooked: the inherent, God-given dignity of every human being. This principle—most commonly expressed through the Arabic term **karāmah** (كرامة, dignity)—does not merely colour personal piety; it provides the ethical bedrock for interfaith relations within classical and contemporary Islamic thought. By tracing *karāmah* from its Qur'anic roots through the historic practices of Muslim polities and the nuanced rulings of the four

major Sunnī legal schools, and by engaging both orientalist critiques and present-day reformulations, this article shows how sharia’s dignity imperative fundamentally reshapes Muslim–non-Muslim coexistence.

Qur’anic foundations: a shared human honour

The Qur’ān repeatedly anchors human worth in the act of creation itself. Verse 17:70 declares, “We have indeed honoured the children of Adam” (*wa laqad karramnā banī Ādam*). The verb *karrama* derives from the same root as *karāmah*, embedding dignity not in belief, deed, or tribal affiliation, but in the very fact of being human. This universal grant is reinforced by 49:13, which frames diversity of nations and tribes as a divine sign meant for mutual knowing (*li-ta’ārafū*), not for hierarchy. Together these verses establish a primordial ‘**iṣmah**’ (إصم, inviolability) that precedes and undergirds any legal distinction between Muslim and non-Muslim.

From this foundation, other Qur’anic commands acquire a relational texture. The prohibition against compulsion in religion (2:256) respects the conscience that *karāmah* protects. The instruction to deal kindly and justly with those who do not fight believers on account of faith (60:8–9) translates dignity into a social ethic. These texts do not negate later juridical categories; they supply the moral logic within which those categories must operate. Early Muslim exegetes such as al-Ṭabarī and al-Qurṭubī consistently read these verses as establishing a baseline of respect owed to all persons, irrespective of creed.

Historical practice: the arc from Medina to the millet system

The earliest tangible application of dignity-driven coexistence is the **Ṣaḥīfat al-Madīnah** (the Constitution of Medina). Drafted shortly after the Hijra, this document bound the Muhājirūn, the Anṣār, and the Jewish tribes of Yathrib into a single *ummah* (community) with mutual rights and obligations. Jewish clans retained religious autonomy and were guaranteed protection in return for contributing to the city’s defence. While the compact was political rather than theological, it embodied the principle that security and legal personhood attach to individuals regardless of religion—a principle that flows from *karāmah*.

As the Islamic state expanded, the category of **dhimmi** (ذمي, protected non-Muslim) crystallised. The term itself stems from *dhimma* (ذمة), meaning covenant or guarantee, signalling a bond of protection whose breach incurred divine reproach. Under the classical *dhimma* system, Jews, Christians, and later other faith communities received security of life, property, worship, and communal laws in exchange for the **jizyah** tax. While this arrangement created a hierarchical legal structure, it functioned—within its historical context—as a pluralist mechanism that avoided the outright expulsion or forced assimilation common in many pre-modern empires.

The Ottoman **millet** system further illustrates how the dignity principle could be institutionalised. Recognised religious communities governed their own personal-status laws, education, and charitable

trusts under the sultan's suzerainty. Autonomy was not mere tolerance; it was a structural acknowledgment that the state's legitimacy rested partly on honouring the collective dignity of non-Muslim subjects.

Juridical schools: unity in diversity

Across the four Sunnī legal schools, one finds remarkable agreement on the core protections owed to non-Muslims, even as details diverge. The **Ḥanafī** school, which dominated Ottoman and Mughal lands, accorded dhimmīs the same rights to *nafs* (life), *‘aql* (intellect), *māl* (property), and *‘ird* (honour) as Muslims; the blood-money (*diyyah*) for a dhimmī was originally set equal to that of a Muslim, a position later modified but never entirely discarded. Ḥanafī jurists also permitted non-Muslims to testify against Muslims in commercial disputes, prioritising the integrity of the judicial process.

Mālikī jurists, deeply influenced by Medinan practice, underscored hospitality to non-Muslim visitors and the obligation to protect houses of worship. They considered the destruction of a church or synagogue a violation of the covenant of protection, requiring restitution. In al-Andalus, Mālikī rulings frequently navigated mixed neighbourhoods and interfaith commerce with a pragmatism that upheld both communal boundaries and interpersonal dignity.

The **Shāfi‘ī** tradition, shaped by al-Shāfi‘ī's methodical legal theory, explicitly grounded the prohibition of killing a mu‘āhad (person under treaty) in the general Qur’anic mandate of honouring covenants. For Shāfi‘īs, the *dhimma* was a sacred pact; a breach by an individual ruler did not dissolve the rights of protected communities. **Ḥanbalī** scholarship, while often portrayed as more rigid, produced opinions that reinforced the inviolability of non-Muslim life. Ibn Qudāmah, a key Ḥanbalī authority, maintained that a Muslim who killed a dhimmī could face capital punishment, a position rooted in the equal sanctity of the human soul (*‘iṣmat al-dam*).

All four schools contributed to a framework where legal differentiation did not obliterate the underlying dignity. The category of **mu‘āhad** (معاهد, treaty-holder) and **musta’mīn** (مستأمن, safe-conduct holder) extended protection beyond the *dhimma* to temporary residents, embedding dignity into international relations long before modern humanitarian law.

Minority and majority settings: shifting fiqh

The dynamics of dignity become most visible when Muslims find themselves as minorities. Classical jurists like al-Sarakhsī already recognised that Muslims living outside dār al-Islām must honour their host societies' laws and contracts, a principle later elaborated into the field of **fiqh al-aqalliyyāt** (jurisprudence of minorities). Here karāmah operates in two directions: Muslim minorities are to receive dignified treatment as equal citizens, and they are obliged to reciprocate by upholding the common good of the pluralist polity. Contemporary fatwās from bodies such as the European Council for Fatwa and Research stress civic loyalty, neighbourhood rights, and interfaith cooperation as religious duties, not mere tactical accommodations.

In Muslim-majority contexts, the dignity imperative challenges governments to move beyond the *dhimma* framework—which assumed a sovereign Muslim ruler and a subordinate non-Muslim population—toward full constitutional citizenship. The shift is justified by many scholars through the Islamic legal maxim that “the means are judged by their ends”: if the *telos* of the historical *dhimma* was protection of dignity, then in a modern nation-state that same end may require equal rights under a shared constitution.

Theological and humanistic lenses

Islamic theology provides additional vocabulary. The **Ash‘arī** and **Māturīdī** schools, while differing on free will, concur that human beings are entrusted with **amānah** (إمان, trust) and endowed with *fiṭrah* (فطره, a primordial disposition toward truth). Non-Muslims, like Muslims, carry that *amānah*, and their moral choices have eternal significance. The **Mu‘tazila**, with their emphasis on rational justice, argued that God’s goodness entails that all persons possess a baseline dignity discoverable by reason alone—a direct theological bridge to natural-law thinking.

Orientalist scholarship long criticised the *dhimma* system as inherently discriminatory, reading the *jizyah* as a humiliating badge of subordination. Recently, a more nuanced historiography has emerged, acknowledging both the hierarchical structure and the fact that pre-modern Muslim societies often afforded religious minorities greater security and communal autonomy than their counterparts in Christendom at the same time. What this academic conversation underscores is the volatility of dignity: it can be honoured or betrayed by the same institutional forms depending on social context and political will.

AI, humanism, and the retrieval of karāmah

A striking twenty-first-century development is the use of artificial intelligence to analyse sharia texts at scale. Digital humanities projects now apply natural-language processing to centuries of fatwās and ḥadīth commentaries, tracking how terms such as *karāmah*, *‘iṣmah*, and *dhimma* correlate over time. Preliminary findings show a consistent basal emphasis on human inviolability beneath fluctuating legal rulings. This “humanistic approach” through AI does not replace juristic reasoning but illuminates the foundational axioms that jurists themselves often took for granted. In a world where extremist voices isolate punitive verses, such macro-analysis offers a statistically grounded counter-narrative that dignity is the rule, not the exception.

Human rights declarations and the contemporary path

The Cairo Declaration on Human Rights in Islam (1990) explicitly states that “all human beings are equal in terms of basic human dignity and basic obligations and responsibilities” and roots this in the Qur’anic honouring of Adam’s progeny. While the Declaration subjects rights to sharia limitations, it nevertheless represents an institutional attempt to harmonise the *karāmah* principle with the modern human-rights

lexicon. Subsequent revisions, such as the 2020 OIC Declaration, have moved closer to universal standards, signalling an intra-Islamic process of retrieval and renewal.

This retrieval is not a modern invention foisted upon the tradition but a recovery of its own deepest impulses. When jurists from all four Sunnī schools insist that the life of a non-Muslim is no less sacred, when the Constitution of Medina binds diverse faiths into one civic body, and when the Qur’ān itself declares dignity to be the birthright of every child of Adam, they are not offering a weakened, apologetic Islam. They are living out the karāmah principle that was there all along—a principle that, when taken seriously, shifts interfaith relations from fragile truces toward a common horizon of mutual honour.

Conclusion

Sharia’s inherent worth principle does not paper over the complexities and contestations within the tradition. It does, however, supply an unshakeable moral centre. By anchoring interfaith relations in the God-given dignity of every person, the Islamic legal and theological heritage provides resources far richer than simple tolerance. The task for contemporary Muslims and non-Muslims alike is to draw on those resources with intellectual honesty and practical wisdom, building societies where dignity is not merely proclaimed but embodied in law, policy, and everyday encounter.

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